

23STCV25022 23STCV25022

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MOTION TO COMPEL

The Court tenders the following tentative decision in the matter Chengbao Dong v. General Motors, LLC, Los Angeles County Superior Court case number 23STCV25022, set for hearing on August 20, 2026. Ramon Rincon (Plaintiff) moves for an order compelling General Motors, LLC (Defendant) to produce its person most knowledgeable (PMK) for deposition and produce the records identified in the deposition notice. Defendant opposes the motion. Plaintiff's motion is denied but the Court requires Defendant to make the PMK available in the next ten days for a remote deposition.

A. Legal Standard

An oral deposition must be scheduled for at least 10 days after the service of the deposition notice. (Id., § 2025.270, subd. (a).) "If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document . . . described in the deposition notice." (Id., 2025.450, subd. (a).) The motion shall be accompanied by a meet and confer declaration or declaration stating that the petitioner has contacted the deponent to inquire about their nonappearance. (Id., § 2025.450, subd. (b)(2).)

B. Discussion

Plaintiff initially served a notice of deposition on Defendant's PMK on April 11, 2024, setting an initial deposition date of May 7, 2024. (Helo Decl. ¶ 2.) Over the next two years, the parties conferred numerous times in an attempt to secure a deposition date. (Id. ¶¶ 3–13.) On June 16, 2026, Plaintiff served a second amended notice of deposition along with a request for production of documents. (Id. ¶¶ 14–15.) Deposition was set for June 25. (Ibid.) Two days before the deposition, Defendant objected to the deposition notice on the grounds that the deposition would be conducted in-person rather than remotely. (Id. ¶ 21.) Defendant's PMK did not appear for deposition on June 25 or produce any documents. (Id. ¶¶ 24–25.)

Defendant argues that Plaintiff's motion fails for three reasons. First, it argues that Plaintiff failed to meet and confer. A motion to compel deposition pursuant to section 2025.450 "shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) A meet and confer declaration "shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Id., § 2016.040.) Here, Plaintiff has demonstrated sufficient meet and confer efforts. Plaintiff has produced evidence that the parties have repeatedly communicated regarding the present deposition, including just days before the present motion was filed.

Second, Defendant argues that Plaintiff's motion should be denied because they seek to compel irrelevant testimony and information. Plaintiff seeks testimony regarding repairs, diagnostics, and warranty claims concerning the subject vehicle, as well as information regarding internal records, further details of the vehicle's Retail Sales Installment Contract, known defects and service bulletins, and the procedure by which Defendant sought to procure that information. Such categories of examination are not irrelevant given the facts of the present case. Nor does the requested information contain trade secrets.

Third, Defendant argues that the motion should be denied because Plaintiff did not file a separate statement. Rule of Court 3.1345 requires that a party submit a separate statement in support of a motion involving the content of a discovery request or responses thereto. The present motion seeks to compel Defendant's deposition but also concerns the content of discovery responses. Indeed, Plaintiff deems Defendant's objections to various document requests improper yet does not offer a separate statement in support of the present motion. (Helo Decl., Ex. E.) A separate statement is required because the present motion relates to the content of discovery responses. Accordingly, the present motion is denied.

C. Conclusion

The Court denies Plaintiff's motion. Nevertheless, the Court will require the PMK deposition to be taken within the next ten days. It may proceed remotely. Defendant should come to Court prepared to offer specific dates and times or the Court will set it.